

Again, any second amended complaint shall be filed no later than ten (10) days from notice of entry of this order.

9. CU0002183 Adventure Resort Marketing, LLC, (ARM) et al vs. B & W Resorts, Inc., dba Harmony Ridge Resort et al

Defendants' Motion for Judgment on the Pleadings is DENIED.

Legal Standard

A party may bring a motion for judgment on the pleadings ("MJOP") after filing an answer and the time to demurrer has expired. Code Civ. Proc. § 438(b)(1) and (f); *Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 548. If the moving party is the defendant, then a MJOP is limited to the grounds the court has no jurisdiction over the subject of the cause of action or the complaint fails to state a cause of action. Code Civ. Proc. § 438(c)(1)(B). The grounds for a MJOP shall appear on the face of the pleading or from any matter judicially noticed. Code Civ. Proc., § 438(d). Essentially, a MJOP performs the same function as a general demurrer, i.e., it attacks only the defects disclosed on the face of the pleading or by matters that are judicially noticed. *Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999. "In deciding or reviewing a judgment on the pleadings, all properly pleaded material facts are deemed to be true, as well as all facts that may be implied or inferred from those expressly alleged." *Fire Ins. Exch. v. Super. Ct.* (2004) 116 Cal.App.4th 446, 452.

Discussion

Defendants argue the defamation claim is insufficiently pled. The Court disagrees.

"Defamation 'involves (a) a publication that is (b) false, (c) defamatory, and (d) unprivileged, and that (e) has a natural tendency to injure or that causes special damage.'" *Price v. Operating Engineers Local Union No. 3* (2011) 195 Cal.App.4th 962, 970. False statements charging the commission of crime, or tending directly to injure a plaintiff in respect to his or her profession by imputing dishonesty or questionable professional conduct are defamatory per se. *Burrill v. Nair* (2013) 217 Cal.App.4th 357, 383.

At bar, the Complaint alleges Defendant Bill Sinor, Sr. had entered into a sales/marketing agreement with Plaintiffs Adventure Resort Marketing, LLC, and Sean Graham. Complaint, Ex. A. The Complaint also alleges Defendant Sinor, Sr. wrote communications in 2023 which state Plaintiffs were "involved in a conspiracy to commit fraud and embezzle funds and resources" and "illegal acts" in relation to business bank accounts in connection to Plaintiff Graham's marketing/sales position with Defendants. Complaint, Exs. B-C. Finally, the Complaint alleges these written communications were "published in a public forum, distributed to business associates of Plaintiff Graham and read by his peers." Complaint, Attachment One.

The Complaint sufficiently alleges a cause of action for defamation: false publication in a public forum and distributed to business associates, tending to injure Plaintiffs with respect to their profession by imputing dishonesty and questionable professional conduct.

Next, Defendants argue the defamation cause of action is time barred. The Court again disagrees.

Defendants assert the claim is time-barred, because the writings incorporated into the Complaint are dated in August 2023, and the Complaint was filed in June 20, 2025. See Code Civ. Proc., § 340(c) (one-year limitations period for defamation). However, a statute of limitations defense must appear clearly on the face of the complaint; it is not enough that the claim might be time-barred. *E-Fab, Inc. v. Accountants, Inc. Services* (2007) 153 Cal.App.4th 1308, 1316.

The Complaint does not allege the writings from August, 2023 are the publications the claim for defamation is based on. Rather, it alleges *after* the writings were made in August, 2023, they were published in a public forum. Therefore, the statute of limitations defense does not appear clearly on the face of the Complaint, because it may be implied from the express allegations that the defamatory statements were made after the writings and before the statute of limitations period ran. *Fire Ins. Exch., supra*, 116 Cal.App.4th at 452; *E-Fab, Inc., supra*, 153 Cal.App.4th at 1316. Thus, the Court cannot find the claims are time-barred based on the pleadings.

Accordingly, Defendants' Motion for Judgment on the Pleadings is hereby DENIED.

10. CU0002429 Hunter, Carol Jean v. Rodriguez, Linda

Appearances required for the Order to Show Cause re Contempt – Arraignment.

11. CU0002591 Melanie Gans-Prosser et al vs. Lake of the Pines Association, a California mutual benefit corporation et al

Defendant Lake of the Pines Association's motion to set aside default is GRANTED pursuant to CCP 473(b).

Code of Civil Procedure section 473(b) provides in pertinent part:

"The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken....[T]he court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment.... The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties."

Here, the Court finds the default was entered appropriately in that the Declaration filed by Defendant's attorney Joceline M. Herman on March 17, 2026 did not comply with CCP 430.41.